EURO AFRICA RESOURCES PVT LTD
versus
RICHARD MOYO-MAJWABU
And
FREDA REBECCA GOLD MINE LIMITED
And
THE MASTER OF THE HIGH COURT
And
THE PROVINCIAL MINING DIRECTOR MATEBELELAND SOUTH

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 25 MARCH

Urgent chamber application

T. G Chigudugudze, for the applicant
Advocate P Dube, for the first respondent
W. Musikadi, for the second respondent

NDUNA J: The applicant has approached the court seeking the following relief: -

FINAL ORDER SOUGHT

1. *The interim relief granted by this court in this matter be and is hereby confirmed.*
2. *The application to set aside the default judgment granted by this court on the 6th of March 2026 under Case Number HCBC 313/26 be and is hereby granted.*
3. *The court order granted by this court on the on the 6th of March 2026 under Case Number HCBC 313/26 be and is hereby rescinded.*
4. *1st Respondent shall pay Applicant s costs of suit on an attorney-client scale, alternatively 1st Respondent and the law firm of James Moyo Majwabu & Nyoni Legal Practitioners shall pay Applicant client scale deboniis propiis.*

INTERIM RELIEF GRANTED

Pending determination of this matter, the Applicant is granted the following relief: -

1. *That execution of the judgment granted by this court on the on the 6th of March 2026 under Case Number HCBC 313/26 be and is hereby suspended.*

The back ground to the application is that the first respondent issued out some court process in which it alleged and got the following in default under case number HCBC 313/26: -

> *" a default judgment is hereby entered in respect of the first Respondent as follows:*
> *a) That you should show cause to this Honourable Court why a final order should not be made in the following terms:-*
> *i) The interim relief granted by this Honourable court in this matter be and is hereby confirmed*
> *ii) The mining operations currently being carried out by the 1st respondent on Nobobs A5 and A6 or any piece of land adjacent to Nubobs A5 and A6 be and be hereby declared illegal and unlawful due to the fact that the 1st Respondent is not a holder of a valid mining certificate or tribute for such operations*
> *iii) The 1st Respondent shall pay the costs of suit on a client and attorney scale*
>
> **INTERIM RELIED GRANTED**
>
> 1. *The 1st Respondent's mining operations of whatsoever nature, being carried out on or near to Nubobs A5 and A6 be and are hereby prohibited and the 1st Respondent is hereby ordered to cease all mining activities pending the finalisation of this application*
>
> **SERVICE OF THE PROVISIONAL ORDER**
> *The applicant's or his legal practitioners be and are hereby authorised to serve this Provisional Order upon the 1st Respondents*

The applicant has approached the court for the relief noted above, contending that his default was occasioned by lack of service by the first respondent in HCBC 313/26. The application is strongly opposed by the 1st respondent.

The position of the matter is that the first respondent and the applicant are miners operating in very close proximity to each other. The applicant asserts that he has authority to mine in the area through an arrangement with the second respondent. In those circumstances, the order obtained by the first respondent prohibits the applicant from mining, it being alleged that the applicant is encroaching onto the mining claim of the 1st respondent. The 1st respondent represents the estate of a deceased person. The 1st respondent obtained a default order under case number HCBC 313/26 against

the applicant Following the granting of that order, the applicant approached this court seeking that it be set aside and that the matter be heard afresh.

It is clear that the applicant though praying for a stay of judgment, seeks the rescission of the default order in these proceedings as he argues that it will be in the interest of justice to determine the final order. The first respondent has correctly opposed the setting aside of the default order in these proceedings. It must, be noted that the purpose of the present proceedings is to stay the execution of the default order, and that its rescission must be the subject of a properly constituted application brought specifically for that purpose. Moreover, it is trite that an interim relief cannot be granted on final basis as held in *S Mabhena vs E Mbangani* HB 57-18 on p3 that

> "It is a well-established practice of this court that in an urgent application the court grants interim relief and not substantive or final relief. It does so because the rules do not require an applicant to prove its case but merely a *prima facie* case".

A stay of execution is the only relief that can properly be granted herein. The order ought therefore to be stayed pending the final relief sought, which is the rescission of the default judgment, so that the merits of the rescission application may be properly ventilated.

In consideration on whether the interim prayer of stay of execution should be granted or not based on the applicant's averments that he was not properly served one will consider The *Civil Practice of the Superior Courts in South Africa* 3rd ed, where Herbstein and Van Winsen state at pp 242–243 under the heading,

> *"When Notice (of Intention to Defend) is Irregular"*
>
> "(b) A notice of intention to defend will also be irregular if the defendant, having filed the original notice with the registrar, fails to serve a copy on the plaintiff or his attorney."

The principle underlying that position is that proper and effective service is fundamental to the fairness of proceedings. Where service is effected through electronic means such as email, the party effecting such service bears the responsibility of

ensuring that the other party is capable of receiving the communication. In the present matter, although service is alleged to have been effected, the applicant avers that such service was effected via email on Thursday 5 March after 4:00 pm, with the hearing scheduled for the next day on Friday at 8:30 am. The applicant contends that the timing of such service made it practically difficult to take note of the proceedings and to respond appropriately.

The applicant also avers that the parties have been involved in previous litigation and the first respondent was aware of the applicant's physical address, which could have been utilised for purposes of service. This position is inconsistent with the first respondent's assertion that it was not aware of any other means of service apart from the email address used.

Furthermore the applicant approached the court within a short period following the issuance of the default judgment and cannot be said to have delayed. In the circumstances, the applicant has established a *prima facie* basis for the granting of the interim relief sought. The interests of justice require that the execution of the default judgment be stayed pending the determination of the rescission application, wherein the issues surrounding service and the validity of the default judgment may be fully ventilated.

The prayer is accordingly granted, with costs against the first respondent on the ordinary scale

Madanhire & Chugudugudze, applicant's legal practitioners
James Moyo-Majwabu & Nyoni Attroneys, 1st respondent's legal practitioners
Chimuka Mafunga Commercial Attorneys, 2nd respondent's legal practitioners